

HOUSE No. 1499

The Commonwealth of Massachusetts

PRESENTED BY:

Patricia A. Duffy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to establish community notification standards for group homes.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Patricia A. Duffy</i>	<i>5th Hampden</i>	<i>1/17/2025</i>
<i>John C. Velis</i>	<i>Hampden and Hampshire</i>	<i>4/7/2025</i>

HOUSE No. 1499

By Representative Duffy of Holyoke, a petition (accompanied by bill, House, No. 1499) of Patricia A. Duffy relative to standards for group homes. Housing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to establish community notification standards for group homes.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 40A of the General Laws is hereby amended by inserting after
2 section 3 the following section:-

3 Section 3A. (a) The following words as used in this section, unless the context clearly
4 requires otherwise, shall have the following meanings:-

5 “Group home”, any residential facility licensed or operated by the commonwealth or a
6 contracted agency that provides housing and support services for individuals with disabilities,
7 mental health needs, or other vulnerable populations.

8 “Municipality”, any city or town within the commonwealth of Massachusetts.

9 “Abutting property owner”, any individual or entity owning property directly adjacent to
10 a group home.

(b) Any entity establishing a new group home shall provide written notice to the host municipality and abutting property owners at least 60 days prior to commencing operations. The notice shall include:

- (1) the address of the group home;
- (2) the type of services provided at the group home; and
- (3) contact information for the operator or managing entity.

(c) Any group home failing to comply with the PILOT or notification requirements may be subject to penalties, including but not limited to:

- (1) financial penalties up to \$5,000 per violation; and
- (2) suspension of state funding or licensing.

(d) The executive office of housing and livable communities shall submit an annual report to the legislature detailing:

- (1) compliance rates with the notification requirements; and
- (2) the number of group homes in each municipality.

(e) The executive office of housing and livable communities shall oversee the implementation and enforcement of this section.

SECTION 2. Existing group homes shall, within six months of the passage of this act, submit notification to their host municipality and abutting property owners in compliance with subsection (b) of section 1 of this act.

30 SECTION 3. If any provision of this act is found to be invalid or unenforceable, the
31 remaining provisions shall remain in full force and effect.

32 SECTION 4. This act shall take effect on January 1, 2026.